

Ref No.: BD-ACEPM-SAMCO-LET-042

Date: Monday, 13th of July 2026

To: SAMCO National Construction Company
Attention: Eng. Mohammed Sami Mohammed (Project Manager)

Project Name: The Big Business District
Contract/Package: Construction Works of the Civil Works for Buildings B1, B2, B3 and B4

Subject: Re: Notice of Claim under Sub-Clause 20.1- Delayed Supply of Reinforcement Steel.

Reference (S):

- 1) Contractor's Letter Ref. BD-CW-SAMCO-ACE-LET-STR-088 dated 09/07/2026

Dear Sir,

We refer to your above-mentioned letter regarding the anticipated delivery of the steel reinforcement.

The Engineer has reviewed the contents of your correspondence and notes that the Contractor has stated that the delivery of the steel reinforcement is delayed. However, based on your Letter Ref. No. 1, the referenced steel reinforcement is required by the Contractor in the middle of July. This does not comply with the previously agreed requirement that requests for steel reinforcement be submitted at least 45 days before the relevant construction activities. In any event, as the stated requirement date has not yet been reached, no actual delay in the delivery of the steel reinforcement has occurred to date.

In this regard, the Engineer considers that the circumstances described in your letter do not constitute an event giving rise to a notice under Sub-Clause 20.1 [Contractor's Claims] of the Contract. Such notice shall be submitted when the Contractor becomes aware, or should have become aware, of an event or circumstance that has actually occurred and may entitle the Contractor to an extension of time. A notice cannot be based solely on an anticipated future event before its occurrence.

Nevertheless, the Engineer appreciates the Contractor's proactive communication and reminder concerning the upcoming requirement for the steel reinforcement. This enables the Employer to coordinate the timely delivery of the material in accordance with the Contract requirements.

The Engineer confirms that the necessary steel reinforcement will be delivered in due time to meet the Contractor's construction sequence and without adversely affecting the progress of the Works.

Yours faithfully,

Eng. / Shady El Kersh.

 Project Director
ACE Project Management
MOHARRAM BAKHOUM
THE BIG

Attachment(s):

CC:

Eng. Mustafa Galal – Client Representative

Eng. Ahmed Helal – Client Representative

